

**UNITED STATES COURT OF APPEALS
FOR THE SECOND CIRCUIT**

BRIEF OF APPELLANT GLOBAL TECH INC.

Appeal No: 24-3456 | Lower Court: 2024-CV-005678
Argued: January 15, 2025 | Submitted: February 1, 2025

STATEMENT OF ISSUES

1. Whether the District Court erred in denying summary judgment on the breach of contract claim where the employment agreement's at-will provisions supersede the aspirational notice clause under New York law.
2. Whether the District Court abused its discretion in admitting Dr. Lee's damages report where the present-value methodology was not disclosed in the Rule 26 expert report.

SUMMARY OF ARGUMENT

The District Court committed reversible error on two independent grounds. First, the court misconstrued settled New York contract law by treating the 90-day notice clause as a binding limitation on at-will termination rights. Second, admission of undisclosed damages methodology prejudiced Appellant and warrants a new trial on damages.

STANDARD OF REVIEW

Questions of contract interpretation: de novo. Evidentiary rulings: abuse of discretion.

Dated: February 1, 2025 | Skadden Arps LLP